

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

Naval Postgraduate School

1 University Circle

Monterey CA, 93943

NAVSUP FLCSD

3985 Cummings Road

San Diego CA, 92136

2. Nature and/or Description of the Action Being Approved

EMERGENCY ROUTING SYSTEM SOFTWARE MAINTENANCE-ITACS requires licensing and maintenance for the Emergency Routing System Software on the 911 emergency tel

This is an exception to fair opportunity to be awarded as a Brand Name Supply from Intrado Life & Safety Inc. which is located at 1601 Dry Creek Drive, Suite 250, Longmont, purpose of this requirement is to provide Emergency Routing System (ERS) software licenses for Naval Postgraduate School (NPS). This provides 911 emergency call routing f telephony system.

The Government contemplates a Firm Fixed Price delivery order for Intrado ERS, commercially available software, for a 12-month base year and four 12-month option years a e items below are the required Intrado-brand software:

Table 1. Intrado Software

Line#	Qty	Unit	Mfr	Part #	Description
1	12	MO	Intrado	EN911-EPOMRC	Enterprise Endpoint Monthly Recurring Charge, 3453 endpoints
2	12	MO	Intrado	EN911-NETTELSUR	Network & Telecom Surcharge
3	1	YR	Intrado	PROSR-EGWVEM	Annual Maintenance & Support, Enterprise Edition
4	1	YR	Intrado	PROSR-DAKAMF	Annual Maintenance & Support, Desk Alert
5	1	YR	Intrado	PROSR-EGWVEA	Annual Maintenance & Support, Enterprise Add License

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

Intrado ERS is commercial software that provides 911 emergency call routing for the NPS telephony system.. This procurement action will be funded with Fiscal Year (FY) 26 C The required software is available on the NASA SEWP GWAC from six (6) Small businesses. The NASA SEWP (Enterprise-Wide Procurement) GWAC (Government-Wide Acquisition Contract) provides the latest in Information Technology, Communication and Audio Visual (ITC/AV) proc for all Federal Agencies and their approved contractors. The statutory authority allowing usage of the SEWP contracts by the entire Federal Government is NASA's designatio Agent by OMB based on the Information Technology Management Reform Act (ITMRA) of 1996, now the Clinger-Cohen Act.

Emergency Routing System Software Maintenance
12 MO Intrado EN911-EPOMRC Enterprise Endpoint Monthly Recurring Charge, 3453 endpoints
12 MO Intrado EN911-NETTELSUR Network & Telecom Surcharge
1 YR Intrado PROSR-EGWVEM Annual Maintenance & Support, Enterprise Edition
1 YR Intrado PROSR-DAKAMF Annual Maintenance & Support, Desk Alert
1 YR Intrado PROSR-EGWVEA Annual Maintenance & Support, Enterprise Add License

12-month Base plus four 12-month Options

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
0.00	0.00	0.00	
Subtotals 0.00	0.00	0.00	
Total			0.00

41 U.S.C. 1903 as implemented by FAR 13.106-1(b)(1)(ii) Brand Name

Additional Information Regarding Statutory Authority if Applicable

This Exception to Fair Opportunity is prepared in accordance with FAR 16.505(b)(2)(B). FLCSD intends to acquire Brand Name only items from Intrado authorized under FAR 16.505(b)(2)(B) "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. Brand Name Justification demonstrates that Intrado's unique product description is essential to the Government's requirements.

Naval Postgraduate School requires continuity with current telephony and 911 emergency notification systems which are designed around Intrado products including ERS Endpoints, Desk Alert and Emergency gateway. These products are proprietary to Intrado.

Intrado-brand ERS has two unique features that market research did not identify in other solutions:

1. Intrado's 24x7x365 Emergency Call Relay Center – functions as a backup Public Safety Answering Point (PSAP). It will answer 911 calls that cannot be routed to a PSAP and the correct PSAP.
2. Public Switched Telephone Network (PSTN) fallback – if a call is unable to route to the PSAP via the gateways/ERS, the call will be routed to the Emergency Call Relay Center NPS Session Initiation Protocol (SIP) trunk & the PSTN.

Together, these features ensure that 911 calls are answered even if:

- NPS emergency gateways and/or the ERS are down or having technical issues
- There's a provisioning error that prevents the call from being automatically routed to the correct local PSAP (e.g., missing location information)
- The local PSAP is too busy to take the call or has a network issue of its own

Other brand solutions do not offer all of the features of Intrado ERS as well as supporting and integrating with Avaya Communications Manager, NPS' telephony solution which is being used.

In addition, the attempted integration of another brand solution would require the Intrado ERS system to be taken offline while the new solution was installed, integrated, and tested. During that time, NPS would be in violation of multiple federal emergency 911 laws and regulations. The time, effort, and resources required could not be recovered in a competitive environment. The negative impact to operations and regulatory compliance from a brand competition are not in the best interests of the Government.

Procurement Request/Solicitation/Purchase Order Number:

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

EMERGENCY ROUTING SYSTEM SOFTWARE MAINTENANCE-ITACS requires licensing and maintenance for the Emergency Routing System Software on the 911 emergency telephone system.

This is an exception to fair opportunity to be awarded as a Brand Name Supply from Intrado Life & Safety Inc. which is located at 1601 Dry Creek Drive, Suite 250, Longmont, CO 80501. The purpose of this requirement is to provide Emergency Routing System (ERS) software licenses for Naval Postgraduate School (NPS). This provides 911 emergency call routing for the NPS telephony system.

The Government contemplates a Firm Fixed Price delivery order for Intrado ERS, commercially available software, for a 12-month base year and four 12-month option years at the firm fixed price of \$1,000,000. The items below are the required Intrado-brand software:

Table 1. Intrado Software

Line#	Qty	Unit	Mfr	Part #	Description
1	12	MO	Intrado	EN911-EPOMRC	Enterprise Endpoint Monthly Recurring Charge, 3453 endpoints
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5	1	YR	Intrado	PROSR-EGWVEA	Annual Maintenance & Support, Enterprise Add License

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

No

1. Restrictive Rights

No

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

2. Exclusive Licensing Agreements

No

The item or service is only available from the Original Equipment Manufacturer (OEM), or its authorized distributor or technical representative for the OEM.

3. Other Reasons

No

Provide details on mission impact if requirement is not solicited from only one source

B. BRAND NAME

Yes

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs

Naval Postgraduate School requires continuity with current telephony and 911 emergency notification systems which are designed around Intrado products including Routing Service (ERS) Enterprise Endpoints, Desk Alert and Emergency gateway. These products are proprietary to Intrado.

Intrado-brand ERS has two unique features that market research did not identify in other solutions:

1. Intrado's 24x7x365 Emergency Call Relay Center – functions as a backup Public Safety Answering Point (PSAP). It will answer 911 calls that couldn't be routed to a PSAP and forwards them to the correct PSAP.
2. Public Switched Telephone Network (PSTN) fallback – if a call is unable to route to the PSAP via the gateways/ERS, the call will be routed to the Emergency Call Relay Center via the NPS Session Initiation Protocol (SIP) trunk & the PSTN

Together, these features ensure that 911 calls are answered even if:

- NPS emergency gateways and/or the ERS are down or having technical issues
- there's a provisioning error that prevents the call from being automatically routed to the correct local PSAP (e.g., missing location information)
- the local PSAP is too busy to take the call or has a network issue of their own

Other brand solutions do not offer all of the features of Intrado ERS as well as supporting and integrating with Avaya Communications Manager, NPS' telephony solution, and

In addition, the attempted integration of another brand solution would require the Intrado ERS system to be taken offline while the new solution was installed, integrated, and tested. During that time, NPS would be in violation of multiple federal emergency 911 laws and regulations. The time, effort, and resources required could not be justified through a brand competition. The negative impact of implementing a different product is not in the best interests of the Government and would potentially place undue burden on government personnel. Based on the preceding information the Contracting Officer authorizes a brand name solicitation and resultant FFP commercial contract award

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine process would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

N/A

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

03/31/2026 to 01/31/2027

3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

N/A

4. If appropriate, include any additional pertinent information:

N/A

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature

LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officer's signature below represents approval of this document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval